



File No.: EXP202313995

## RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: On August 28, 2023, Ms. A.A.A. filed a complaint with the Spanish Agency for Data Protection against CORREOS EXPRESS PAQUETERIA URGENTE, S.A., S.M.E with NIF A28799120 (hereinafter, the complained party or CORREOS EXPRESS). The reasons for the complaint are as follows:

The complainant states that she placed an online order with the entity PEPE JEANS, with the complained party being responsible, by mandate of PEPE JEANS, for delivering the order; however, it was not delivered to her home, but rather to a nearby establishment to the complainant's residence, specifically to the local bar, without her consent, which exposes the personal data contained on the shipping label of the package to third parties.

Along with the complaint, she provides a copy of the purchase information, the delivery made, as well as the response received from PEPE JEANS regarding the information gathered from the complained party about where the package, of which the complainant was the recipient, was delivered.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to CORREOS EXPRESS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 13, 2023, as evidenced by the receipt certificate in the file.

On November 2, a response was received by this Agency indicating that "...After the internal investigation initiated by Correos Express, as outlined in section 1 of this document, the following facts have been clarified:

On August 24, 2023, a shipment with shipping code No. (...) was processed, whose recipient was the complainant, Ms. A.A.A., and whose sender was the company Pepe Jeans, S.L. (whose trade name is Pepe Jeans London) which is a client of Correos Express as both entities have signed a commercial agreement for the provision of transport services dated February 21, 2020. We attach to this document as ANNEX 1 the shipment data that appears in the information systems of Correos Express and as ANNEX 2 the commercial agreement for the provision of transport services between Pepe Jeans London and Correos Express.

On August 28, 2023, the driver responsible for delivering the shipment delivered it at 12:35 PM, as evidenced by the delivery proof attached as ANNEX 3. At this point, we must inform that this driver is an employee of the transport company TRANSJOLEIZ, S.L., a provider of Correos Express. We attach as ANNEX 4 to this document the data processing agreement signed by this provider dated February 21, 2022.

On August 30, 2023, the complainant sent a complaint to the customer service mailbox of Correos Express (clientes@correosexpress.com), indicating that on August 28, 2023, a shipment in her name had been delivered to another person without her consent and that the sender had informed her that Correos Express had indicated that the shipment was delivered at the local bar. The complainant also indicated in her communication that "I have given you sufficient time to recover my package" and that in light of Correos Express's refusal "I was going to proceed with the appropriate complaints and claims."

On September 1, the complainant wrote again to this mailbox indicating "September 1 and I am still waiting for my package that you delivered to another person. If I do not receive my package at my home today, I will go to the consumer office." On the same day, September 1, 2023, a response was given from the customer service mailbox of Correos Express indicating that through this channel her

request could not be addressed, as it is a channel for customers with an account, and that she should please contact them through the website [www.correosexpress.com](http://www.correosexpress.com) in the contact section or by calling customer service and that she should please contact the sender of her shipment. We attach these three communications, the two from the complainant and the response from Customer Service of Correos Express, as ANNEX 5.

On September 5, 2023, the complainant opened a complaint with Customer Service indicating that she did not have the shipment and that she did not know the person who signed for its receipt. Customer Service forwarded the complaint on the same day, September 5, 2023, to the Delegation of Correos Express (...), which responded the same day informing that the next day the driver who had made the delivery would go to the bar where the shipment was left to recover it.

On September 7, 2023, Customer Service again inquired about the status of the shipment to the Delegation, which responded that the driver went to the bar and that at the bar they informed him that the shipment had been picked up by the complainant's aunt. We attach the information about the complaints received in the information systems of Customer Service of Correos Express as ANNEX 6.

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Once this claim was closed, Correos Express did not receive any further communication from the claimant or the sender of the shipment until October 11, 2023, the date on which Correos Express received the request for transfer of the claim and request for information from the Spanish Agency for Data Protection.

At the moment the transfer of the claim was received from the AEPD, as we have already indicated, internal investigations were immediately initiated to clarify this matter. As part of these measures, a statement was requested from TRANSJOLEIZ, S.L., the provider of Correos Express responsible for delivering the shipment in question. In the statement, the provider informed that on August 26, they received the disputed shipment for delivery and that it was assigned to one of the company's delivery personnel, who went to the delivery address and, finding the recipient absent from their home, opted to leave the shipment at a nearby business, intending to fulfill the commitment of delivery within 24 hours. It also indicates that due to problems with their PDA, they were unable to call the recipient in the absence of the latter from their home.

The provider of Correos Express states that they have confirmed that the recipient has the shipment in their possession, conveying their apologies. Finally, it notes that recently, in October, TRANSJOLEIZ, S.L. received a written communication from Correos Express regarding the non-delivery to unauthorized third parties, and that this communication has been conveyed to all its delivery personnel for compliance. We attach the provider's statement as ANNEX 7 to this document.

At this point, we consider it essential to note that Correos Express provides instructions on how deliveries should be carried out to all its transport providers, who are in turn obliged to convey this information to all their drivers who deliver shipments for Correos Express. Furthermore, Correos Express periodically reminds these transport companies to reinforce this information, especially the importance of only delivering shipments to the recipients or third parties authorized by them...

THIRD: On November 24, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted was admitted for processing.

## LEGAL GROUNDS

I

### Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish

Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

#### Preliminary Issues

In this case, in accordance with the provisions of Article 4.1 of the GDPR, it is established that there is processing of personal data, since CORREOS EXPRESS carries out, among other treatments, the retention and use of the following personal data of individuals, such as: name, surname, location data... etc.

CORREOS EXPRESS carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, section 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that result in the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

III

#### Adoption of Measures for Compliance with Regulations

CORREOS EXPRESS states in the document submitted to the AEPD on November 2, 2023, that "... Correos Express provides instructions on how deliveries should be carried out to all its transport providers, who are in turn obliged to convey this information to all their drivers who deliver shipments for Correos Express. Furthermore, Correos Express periodically reminds these transport companies to reinforce this information, especially the importance of only delivering shipments to the recipients or third parties authorized by them.

We attach as ANNEX 8 the latest communication sent to the provider TRANSJOLEIZ, S.L., dated October 4, 2023, which the carrier refers to in their sworn statement, reminding how deliveries of shipments operated by Correos Express should be made, and specifically indicating that deliveries to third parties other than the recipients can only be made in those cases where the recipient has authorized in writing the delivery of the shipment to a third party.

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Consequently, it is evident that CORREOS EXPRESS has adopted other additional measures subsequent to the filing of the complaint; therefore, the application of Article 65.6 of the LOPDGDD is appropriate, which expressly states that:

"(...) 6. After the admission for processing, if the data controller or processor demonstrates having adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve to archive the complaint, when in the specific case there are circumstances that advise the adoption of other more moderate or alternative solutions to corrective action, provided that no prior investigative actions or any of the procedures regulated in this organic law have been initiated (...)"

IV

#### Conclusion

Therefore, based on the indications in the previous paragraphs, and given that according to Article 65.6 of the LOPDGDD, there are circumstances that advise the adoption of other alternative solutions to corrective action, the archiving of the complaint is appropriate.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection AGREES:

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FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to CORREOS EXPRESS PAQUETERIA URGENTE, S.A., S.M.E and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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